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Title 33 —Navigation and Navigable Waters
Chapter I —Coast Guard, Department of Homeland Security
Subchapter P —Ports and Waterways Safety

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PART 160—PORTS AND WATERWAYS SAFETY—GENERAL

Authority: 46 U.S.C. 70001-70003, 70034, and Chapter 701; DHS Delegation 00170.1, Revision No. 01.4. Subpart C is also issued under the authority of 46 U.S.C. 3715 and 46 U.S.C. 70011.

Source: CGD 79-026, 48 FR 35404, Aug. 4, 1983, unless otherwise noted.

Subpart A—General

§ 160.1 Purpose.

This subchapter contains regulations implementing 46 U.S.C. Chapter 700 “Ports and Waterways Safety” and related statutes.

[USCG-2020-0304, 85 FR 58280, Sept. 18, 2020]

§ 160.3 Definitions.

For the purposes of this subchapter:

Bulk means material in any quantity that is shipped, stored, or handled without the benefit of package, label, mark or count and carried in integral or fixed independent tanks.

Captain of the Port means the Coast Guard officer designated by the Commandant to command a Captain of the Port Zone as described in part 3 of this chapter.

Commandant means the Commandant of the United States Coast Guard.

Deviation means any departure from any rule in this subchapter.

Director, Vessel Traffic Services means the Coast Guard officer designated by the Commandant to command a Vessel Traffic Service (VTS) as described in part 161 of this chapter.

District Commander means the Coast Guard officer designated by the Commandant to command a Coast Guard District as described in part 3 of this chapter.

ETA means estimated time of arrival.

Length of Tow means, when towing with a hawser, the length in feet from the stern of the towing vessel to the stern of the last vessel in tow. When pushing ahead or towing alongside, length of tow means the tandem length in feet of the vessels in tow excluding the length of the towing vessel.

Person means an individual, firm, corporation, association, partnership, or governmental entity.

State means each of the several States of the United States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the United States Virgin Islands, the Trust Territories of the Pacific Islands, the Commonwealth of the Northern Marianas Islands, and any other commonwealth, territory, or possession of the United States.

Tanker means a self-propelled tank vessel constructed or adapted primarily to carry oil or hazardous materials in bulk in the cargo spaces.

Tank Vessel means a vessel that is constructed or adapted to carry, or that carries, oil or hazardous material in bulk as cargo or cargo residue.

Vehicle means every type of conveyance capable of being used as a means of transportation on land.

Vessel means every description of watercraft or other artificial contrivance used, or capable of being used, as a means of transportation on water.

Vessel Traffic Services (VTS) means a service implemented under part 161 of this chapter by the United States Coast Guard designed to improve the safety and efficiency of vessel traffic and to protect the environment. The VTS has the capability to interact with marine traffic and respond to traffic situations developing in the VTS area.

Vessel Traffic Service Area or VTS Area means the geographical area encompassing a specific VTS area of service as described in part 161 of this chapter. This area of service may be subdivided into sectors for the purpose of allocating responsibility to individual Vessel Traffic Centers or to identify different operating requirements.

Note: Although regulatory jurisdiction is limited to the navigable waters of the United States, certain vessels will be encouraged or may be required, as a condition of port entry, to report beyond this area to facilitate traffic management within the VTS area.

VTS Special Area means a waterway within a VTS area in which special operating requirements apply.

[CGD 90-020, 59 FR 36323, July 15, 1994, as amended at USCG-2010-0351, 75 FR 36286, June 25, 2010]

§ 160.5 Delegations.

- (a) District Commanders and Captains of the Ports are delegated the authority to establish safety zones.
- (b) Under the provisions of §§ 6.04-1 and 6.04-6 of this chapter, District Commanders and Captains of the Ports have been delegated authority to establish security zones.
- (c) Under the provisions of § 1.05-1 of this chapter, District Commanders have been delegated authority to establish regulated navigation areas.
- (d) Subject to the supervision of the cognizant Captain of the Port and District Commander, Directors, Vessel Traffic Services are delegated authority under 33 CFR 1.01-30 to discharge the duties of the Captain of the Port that involve directing the operation, movement, and anchorage of vessels within a Vessel Traffic Service area including management of vessel traffic within anchorages, regulated navigation areas and safety zones, and to enforce Vessel Traffic Service and ports and waterways safety regulations. This authority may be exercised by Vessel Traffic Center personnel. The Vessel Traffic Center may, within the Vessel Traffic Service area, provide information, make recommendations, or, to a vessel required under

part 161 of this chapter to participate in a Vessel Traffic Service, issue an order, including an order to operate or anchor as directed; require the vessel to comply with orders issued; specify times of entry, movement or departure; restrict operations as necessary for safe operation under the circumstances; or take other action necessary for control of the vessel and the safety of the port or of the marine environment.

[CGD 79-026, 48 FR 35404, Aug. 4, 1983, as amended by CGD 88-037, 53 FR 21815, June 10, 1988; CGD 90-020, 59 FR 36324, July 15, 1994; USCG-2010-0351, 75 FR 36287, June 25, 2010]

§ 160.7 Appeals.

- (a) Any person directly affected by a safety zone or an order or direction issued under this subchapter may request reconsideration by the official who issued it or in whose name it was issued. This request may be made orally or in writing, and the decision of the official receiving the request may be rendered orally or in writing.
- (b) Any person directly affected by the establishment of a safety zone or by an order or direction issued by, or on behalf of, a Captain of the Port may appeal to the District Commander through the Captain of the Port. The appeal must be in writing, except as allowed under paragraph (e) of this section, and shall contain complete supporting documentation and evidence which the appellant wishes to have considered. Upon receipt of the appeal, the District Commander may direct a representative to gather and submit documentation or other evidence which would be necessary or helpful to a resolution of the appeal. A copy of this documentation and evidence is made available to the appellant. The appellant is afforded five working days from the date of receipt to submit rebuttal materials. Following submission of all materials, the District Commander issues a ruling, in writing, on the appeal. Prior to issuing the ruling, the District Commander may, as a matter of discretion, allow oral presentation on the issues.
- (c) Any person directly affected by the establishment of a safety zone or by an order or direction issued by, or on behalf of, a District Commander, or who receives an unfavorable ruling on an appeal taken under paragraph (b) of this section may appeal to the Area Commander through the District Commander. The appeal must be in writing, except as allowed under paragraph (e) of this section, and shall contain complete supporting documentation and evidence which the appellant wishes to have considered. Upon receipt of the appeal, the Area Commander may direct a representative to gather and submit documentation or other evidence which would be necessary or helpful to a resolution of the appeal. A copy of this documentation and evidence is made available to the appellant. The appellant is afforded five working days from the date of receipt to submit rebuttal materials. Following submission of all materials, the Area Commander issues a ruling, in writing, on the appeal. Prior to issuing the ruling, the Area Commander may, as a matter of discretion, allow oral presentation on the issues.
- (d) Any person who receives an unfavorable ruling on an appeal taken under paragraph (c) of this section, may appeal to the Commandant (CG-5P), Attn: Assistant Commandant for Prevention, U.S. Coast Guard Stop 7501, 2703 Martin Luther King Jr. Avenue SE., Washington, DC 20593-7501. The appeal must be in writing, except as allowed under paragraph (e) of this section. The Area Commander forwards the appeal, all the documents and evidence which formed the record upon which the order or direction was issued or the ruling under paragraph (c) of this section was made, and any comments which might be relevant, to the Assistant Commandant for Prevention. A copy of this documentation and evidence is made available to the appellant. The appellant is afforded 5 working days from the date of receipt to submit rebuttal materials to the Assistant Commandant for Prevention. The decision of the Assistant Commandant for Prevention is based upon the materials submitted, without oral argument or presentation. The decision of the Assistant Commandant for Prevention is issued in writing and constitutes final agency action.

- (e) If the delay in presenting a written appeal would have significant adverse impact on the appellant, the appeal under paragraphs (b) and (c) of this section may initially be presented orally. If an initial presentation of the appeal is made orally, the appellant must submit the appeal in writing within five days of the oral presentation to the Coast Guard official to whom the presentation was made. The written appeal must contain, at a minimum, the basis for the appeal and a summary of the material presented orally. If requested, the official to whom the appeal is directed may stay the effect of the action while the ruling is being appealed.

[CGD 79-026, 48 FR 35404, Aug. 4, 1983, as amended by CGD 88-052, 53 FR 25122, July 1, 1988; CGD 96-026, 61 FR 33668, June 28, 1996; CGD 97-023, 62 FR 33364, June 19, 1997; USCG-2002-12471, 67 FR 41333, June 18, 2002; USCG-2006-25150, 71 FR 39211, July 12, 2006; 72 FR 17409, Apr. 9, 2007; USCG-2010-0351, 75 FR 36287, June 25, 2010; USCG-2011-0257, 76 FR 31838, June 2, 2011; USCG-2014-0410, 79 FR 38439, July 7, 2014]

Subpart B—Control of Vessel and Facility Operations

§ 160.101 Purpose.

This subpart describes the authority exercised by District Commanders and Captains of the Ports to insure the safety of vessels and waterfront facilities, and the protection of the navigable waters and the resources therein. The controls described in this subpart are directed to specific situations and hazards.

§ 160.103 Applicability.

- (a) This subpart applies to any—
 - (1) Vessel on the navigable waters of the United States, except as provided in paragraphs (b) and (c) of this section;
 - (2) Bridge or other structure on or in the navigable waters of the United States; and
 - (3) Land structure or shore area immediately adjacent to the navigable waters of the United States.
- (b) This subpart does not apply to any vessel on the Saint Lawrence Seaway.
- (c) Except pursuant to international treaty, convention, or agreement, to which the United States is a party, this subpart does not apply to any foreign vessel that is not destined for, or departing from, a port or place subject to the jurisdiction of the United States and that is in:
 - (1) Innocent passage through the territorial sea of the United States;
 - (2) Transit through the navigable waters of the United States which form a part of an international strait.

§ 160.105 Compliance with orders.

Each person who has notice of the terms of an order issued under this subpart must comply with that order.

§ 160.107 Denial of entry.

Each District Commander or Captain of the Port, subject to recognized principles of international law, may deny entry into the navigable waters of the United States or to any port or place under the jurisdiction of the United States, and within the district or zone of that District Commander or Captain of the Port, to any vessel not in compliance with the provisions of the Port and Tanker Safety Act (46 U.S.C. Chapter 700) or the regulations issued thereunder.

[CGD 79-026, 48 FR 35404, Aug. 4, 1983, as amended by USCG-2020-0304, 85 FR 58280, Sept. 18, 2020]

§ 160.109 Waterfront facility safety.

- (a) To prevent damage to, or the destruction of, any bridge or other structure on or in the navigable waters of the United States, or any land structure or shore area immediately adjacent to such waters, and to protect the navigable waters and the resources therein from harm resulting from vessel or structure damage, destruction, or loss, each District Commander or Captain of the Port may:
 - (1) Direct the handling, loading, unloading, storage, and movement (including the emergency removal, control and disposition) of explosives or other dangerous articles and substances, including oil or hazardous material as those terms are defined in 46 U.S.C. 2101 on any structure on or in the navigable waters of the United States, or any land structure or shore area immediately adjacent to those waters; and
 - (2) Conduct examinations to assure compliance with the safety equipment requirements for structures.

[CGD 79-026, 48 FR 35404, Aug. 4, 1983, as amended by USCG-1998-3799, 63 FR 35531, June 30, 1998]

§ 160.111 Special orders applying to vessel operations.

Each District Commander or Captain of the Port may order a vessel to operate or anchor in the manner directed when:

- (a) The District Commander or Captain of the Port has reasonable cause to believe that the vessel is not in compliance with any regulation, law or treaty;
- (b) The District Commander or Captain of the Port determines that the vessel does not satisfy the conditions for vessel operation and cargo transfers specified in § 160.113; or
- (c) The District Commander or Captain of the Port has determined that such order is justified in the interest of safety by reason of weather, visibility, sea conditions, temporary port congestion, other temporary hazardous circumstances, or the condition of the vessel.

§ 160.113 Prohibition of vessel operation and cargo transfers.

- (a) Each District Commander or Captain of the Port may prohibit any vessel, subject to the provisions of chapter 37 of Title 46, U.S. Code, from operating in the navigable waters of the United States, or from transferring cargo or residue in any port or place under the jurisdiction of the United States, and within the district or zone of that District Commander or Captain of the Port, if the District Commander or the Captain of the Port determines that the vessel's history of accidents, pollution incidents, or serious repair problems creates reason to believe that the vessel may be unsafe or pose a threat to the marine environment.
- (b) The authority to issue orders prohibiting operation of the vessels or transfer of cargo or residue under paragraph (a) of this section also applies if the vessel:
 - (1) Fails to comply with any applicable regulation;
 - (2) Discharges oil or hazardous material in violation of any law or treaty of the United States;
 - (3) Does not comply with applicable vessel traffic service requirements;

- (4) While underway, does not have at least one deck officer on the navigation bridge who is capable of communicating in the English language.
- (c) When a vessel has been prohibited from operating in the navigable waters of the United States under paragraphs (a) or (b) of this section, the District Commander or Captain of the Port may allow provisional entry into the navigable waters of the United States, or into any port or place under the jurisdiction of the United States and within the district or zone of that District Commander or Captain of the Port, if the owner or operator of such vessel proves to the satisfaction of the District Commander or Captain of the Port, that the vessel is not unsafe or does not pose a threat to the marine environment, and that such entry is necessary for the safety of the vessel or the persons on board.
- (d) A vessel which has been prohibited from operating in the navigable waters of the United States, or from transferring cargo or residue in a port or place under the jurisdiction of the United States under the provisions of paragraph (a) or (b)(1), (2) or (3) of this section, may be allowed provisional entry if the owner or operator proves, to the satisfaction of the District Commander or Captain of the Port that has jurisdiction, that the vessel is no longer unsafe or a threat to the environment, and that the condition which gave rise to the prohibition no longer exists.

[CGD 79-026, 48 FR 35404, Aug. 4, 1983, as amended by CGD 96-026, 61 FR 33668, June 28, 1996; USCG-1998-3799, 63 FR 35531, June 30, 1998; USCG-2006-24371, 74 FR 11212, Mar. 16, 2009]

§ 160.115 Withholding of clearance.

Each District Commander or Captain of the Port may request the Secretary of the Treasury, or the authorized representative thereof, to withhold or revoke the clearance required by 46 U.S.C. App. 91 of any vessel, the owner or operator of which is subject to any penalties under 46 U.S.C. 70036.

[CGD 79-026, 48 FR 35404, Aug. 4, 1983; 48 FR 39059, Aug. 29, 1983, as amended by USCG-1998-3799, 63 FR 35531, June 30, 1998]

Subpart C—Notification of Arrival, Hazardous Conditions, and Certain Dangerous Cargoes

Source: USCG-2002-11865, 68 FR 9543, Feb. 28, 2003, unless otherwise noted.

§ 160.201 General.

This subpart contains requirements and procedures for submitting a notice of arrival (NOA), and a notice of hazardous condition. The sections in this subpart describe:

- (a) Applicability and exemptions from requirements in this subpart;
- (b) Required information in an NOA;
- (c) Required updates to an NOA;
- (d) Methods and times for submission of an NOA, and updates to an NOA;
- (e) How to obtain a waiver; and
- (f) Requirements for submission of the notice of hazardous condition.

Note to § 160.201. For notice-of-arrival requirements for the U.S. Outer Continental Shelf, see 33 CFR part 146.

[80 FR 5330, Jan. 30, 2015]

§ 160.202 Definitions.

Terms in this subpart that are not defined in this section or in § 160.3 have the same meaning as those terms in 46 U.S.C. 2101. As used in this subpart—

Agent means any person, partnership, firm, company or corporation engaged by the owner or charterer of a vessel to act in their behalf in matters concerning the vessel.

Barge means a non-self propelled vessel engaged in commerce.

Boundary waters mean the waters from main shore to main shore of the lakes and rivers and connecting waterways, or the portions thereof, along which the international boundary between the United States and the Dominion of Canada passes, including all bays, arms, and inlets thereof, but not including tributary waters which in their natural channels would flow into such lakes, rivers, and waterways, or waters flowing from such lakes, rivers, and waterways, or the waters of rivers flowing across the boundary.

Carried in bulk means a commodity that is loaded or carried on board a vessel without containers or labels and received and handled without mark or count.

Certain dangerous cargo (CDC) includes any of the following:

- (1) Division 1.1 or 1.2 explosives as defined in 49 CFR 173.50.
- (2) Division 1.5D blasting agents for which a permit is required under 49 CFR 176.415 or, for which a permit is required as a condition of a Research and Special Programs Administration exemption.
- (3) Division 2.3 “poisonous gas”, as listed in 49 CFR 172.101 that is also a “material poisonous by inhalation” as defined in 49 CFR 171.8, and that is in a quantity in excess of 1 metric ton per vessel.
- (4) Division 5.1 oxidizing materials for which a permit is required under 49 CFR 176.415 or for which a permit is required as a condition of a Research and Special Programs Administration exemption.
- (5) A liquid material that has a primary or subsidiary classification of Division 6.1 “poisonous material” as listed in 49 CFR 172.101 that is also a “material poisonous by inhalation,” as defined in 49 CFR 171.8 and that is in a bulk packaging, or that is in a quantity in excess of 20 metric tons per vessel when not in a bulk packaging.
- (6) Class 7, “highway route controlled quantity” radioactive material or “fissile material, controlled shipment,” as defined in 49 CFR 173.403.
- (7) All bulk liquefied gas cargo carried under 46 CFR 151.50-31 or listed in 46 CFR 154.7 that is flammable and/or toxic and that is not carried as certain dangerous cargo residue (CDC residue).
- (8) The following bulk liquids except when carried as CDC residue:
 - (i) Acetone cyanohydrin;
 - (ii) Allyl alcohol;

- (iii) Chlorosulfonic acid;
 - (iv) Crotonaldehyde;
 - (v) Ethylene chlorohydrin;
 - (vi) Ethylene dibromide;
 - (vii) Methacrylonitrile;
 - (viii) Oleum (fuming sulfuric acid); and
 - (ix) Propylene oxide, alone or mixed with ethylene oxide.
- (9) The following bulk solids:
- (i) Ammonium nitrate listed as a Division 5.1 (oxidizing) material in 49 CFR 172.101 except when carried as CDC residue; and
 - (ii) Ammonium nitrate based fertilizer listed as a Division 5.1 (oxidizing) material in 49 CFR 172.101 except when carried as CDC residue.

Certain dangerous cargo residue (CDC residue) includes any of the following:

- (1) Ammonium nitrate in bulk or ammonium nitrate based fertilizer in bulk remaining after all saleable cargo is discharged, not exceeding 1,000 pounds in total and not individually accumulated in quantities exceeding two cubic feet.
- (2) For bulk liquids and liquefied gases, the cargo that remains onboard in a cargo system after discharge that is not accessible through normal transfer procedures, with the exception of the following bulk liquefied gas cargoes carried under 46 CFR 151.50-31 or listed in 46 CFR 154.7:
 - (i) Ammonia, anhydrous;
 - (ii) Chlorine;
 - (iii) Ethane;
 - (iv) Ethylene oxide;
 - (v) Methane (LNG);
 - (vi) Methyl bromide;
 - (vii) Sulfur dioxide; and
 - (viii) Vinyl chloride.

Charterer means the person or organization that contracts for the majority of the carrying capacity of a ship for the transportation of cargo to a stated port for a specified period. This includes “time charterers” and “voyage charterers.”

Crewmember means all persons carried on board the vessel to provide navigation and maintenance of the vessel, its machinery, systems, and arrangements essential for propulsion and safe navigation or to provide services for other persons on board.

Embark means when a crewmember or a person in addition to the crew joins the vessel.

Ferry schedule means a published document that:

- (1) Identifies locations a ferry travels to and from;
- (2) Lists the times of departures and arrivals; and
- (3) Identifies the portion of the year in which the ferry maintains this schedule.

Foreign vessel means a vessel of foreign registry or operated under the authority of a country except the United States.

Great Lakes means Lakes Superior, Michigan, Huron, Erie, and Ontario, their connecting and tributary waters, the Saint Lawrence River as far as Saint Regis, and adjacent port areas.

Gross tons means the tonnage determined by the tonnage authorities of a vessel's flag state in accordance with the national tonnage rules in force before the entry into force of the International Convention on Tonnage Measurement of Ships, 1969 (“Convention”). For a vessel measured only under Annex I of the Convention, gross tons means that tonnage. For a vessel measured under both systems, the higher gross tonnage is the tonnage used for the purposes of the 300-gross-ton threshold.

Hazardous condition means any condition that may adversely affect the safety of any vessel, bridge, structure, or shore area or the environmental quality of any port, harbor, or navigable waterway of the United States. It may, but need not, involve collision, allision, fire, explosion, grounding, leaking, damage, cyber incident, injury or illness of a person aboard, or manning-shortage.

Nationality means the state (nation) in which a person is a citizen or to which a person owes permanent allegiance.

Operating exclusively within a single Captain of the Port zone refers to vessel movements within the boundaries of a single COTP zone, e.g., from one dock to another, one berth to another, one anchorage to another, or any combination of such transits. Once a vessel has arrived in a port in a COPT zone, it would not be considered as departing from a port or place simply because of its movements within that specific port.

Operator means any person including, but not limited to, an owner, a charterer, or another contractor who conducts, or is responsible for, the operation of a vessel.

Persons in addition to crewmembers mean any person onboard the vessel, including passengers, who are not included on the list of crewmembers.

Port or place of departure means any port or place in which a vessel is anchored or moored.

Port or place of destination means any port or place in which a vessel is bound to anchor or moor.

Public vessel means a vessel that is owned or demise-(bareboat) chartered by the government of the United States, by a State or local government, or by the government of a foreign country and that is not engaged in commercial service.

Time charterer means the party who hires a vessel for a specific amount of time. The owner and his crew manage the vessel, but the charterer selects the ports of destination.

Voyage charterer means the party who hires a vessel for a single voyage. The owner and his crew manage the vessel, but the charterer selects the ports of destination.

[USCG-2002-11865, 68 FR 9543, Feb. 28, 2003, as amended by USCG-2004-19963, 70 FR 74669, Dec. 16, 2005; 75 FR 59620, Sept. 28, 2010. Redesignated and amended by USCG-2005-21869, 80 FR 5330, Jan. 30, 2015; USCG-2022-0802, 90 FR 6453, Jan. 17, 2025]

§ 160.203 Applicability.

- (a) This subpart applies to the following vessels that are bound for or departing from ports or places within the navigable waters of the United States, as defined in 33 CFR 2.36(a), which includes internal waters and the territorial seas of the United States, and any deepwater port as defined in 33 CFR 148.5:
 - (1) U.S. vessels in commercial service, and
 - (2) All foreign vessels.
- (b) Unless otherwise specified in this subpart, the owner, agent, master, operator, or person in charge of a vessel regulated by this subpart is responsible for compliance with the requirements in this subpart.
- (c) Towing vessels controlling a barge or barges required to submit an NOA under this subpart must submit only one NOA containing the information required for the towing vessel and each barge under its control.

[USCG-2002-11865, 68 FR 9543, Feb. 28, 2003, as amended by USCG-2004-19963, 70 FR 74669, Dec. 16, 2005. Redesignated and amended at 80 FR 5330, 5331, Jan. 30, 2015]

§ 160.204 Exemptions and exceptions.

- (a) Except for reporting notice of hazardous conditions, the following vessels are exempt from requirements in this subpart:
 - (1) A passenger or offshore supply vessel when employed in the exploration for or in the removal of oil, gas, or mineral resources on the continental shelf.
 - (2) An oil spill response vessel (OSRV) when engaged in actual spill response operations or during spill response exercises.
 - (3) After December 31, 2015, a vessel required by 33 CFR 165.830 or 165.921 to report its movements, its cargo, or the cargo in barges it is towing.
 - (4) A United States or Canadian vessel engaged in the salvaging operations of any property wrecked, or rendering aid and assistance to any vessels wrecked, disabled, or in distress, in waters specified in Article II of the 1908 Treaty of Extradition, Wrecking and Salvage (35 Stat. 2035; Treaty Series 502).
 - (5) The following vessels neither carrying certain dangerous cargo nor controlling another vessel carrying certain dangerous cargo:
 - (i) A foreign vessel 300 gross tons or less not engaged in commercial service.
 - (ii) A vessel operating exclusively within a single Captain of the Port zone. Captain of the Port zones are defined in 33 CFR part 3.
 - (iii) A U.S. towing vessel and a U.S. barge operating solely between ports or places of the contiguous 48 states, Alaska, and the District of Columbia.
 - (iv) A public vessel.
 - (v) Except for a tank vessel, a U.S. vessel operating solely between ports or places of the United States on the Great Lakes.
 - (vi) A U.S. vessel 300 gross tons or less, engaged in commercial service not coming from a foreign port or place.

(vii) Each ferry on a fixed route that is described in an accurate schedule that is submitted by the ferry operator, along with information in paragraphs (a)(5)(vii)(A) through (J) of this section, to the Captain of the Port for each port or place of destination listed in the schedule at least 24 hours in advance of the first date and time of arrival listed on the schedule. At least 24 hours before the first date and time of arrival listed on the ferry schedule, each ferry operator who submits a schedule under paragraph (a)(5)(vii) of this section must also provide the following information to the Captain of the Port for each port or place of destination listed in the schedule for the ferry, and if the schedule or the following submitted information changes, the ferry operator must submit an updated schedule at least 24 hours in advance of the first date and time of arrival listed on the new schedule and updates on the following items whenever the submitted information is no longer accurate:

- (A) Name of the vessel;
- (B) Country of registry of the vessel;
- (C) Call sign of the vessel;
- (D) International Maritime Organization (IMO) international number or, if the vessel does not have an assigned IMO international number, the official number of the vessel;
- (E) Name of the registered owner of the vessel;
- (F) Name of the operator of the vessel;
- (G) Name of the vessel's classification society or recognized organization, if applicable;
- (H) Each port or place of destination;
- (I) Estimated dates and times of arrivals at and departures from these ports or places; and
- (J) Name and telephone number of a 24-hour point of contact.

(b) A vessel less than 500 gross tons is not required to submit the International Safety Management (ISM) Code Notice (Entry 7 in Table 160.206 of § 160.206).

(c) A U.S. vessel is not required to submit the International Ship and Port Facility Security (ISPS) Code Notice information (Entry 8 in Table 160.206 of § 160.206).

[USCG-2002-11865, 68 FR 9543, Feb. 28, 2003, as amended by USCG-2003-14749, 68 FR 39313, July 1, 2003; 68 FR 63735, Nov. 10, 2003. Redesignated and amended at 80 FR 5330, 5331, Jan. 30, 2015]

§ 160.205 Notices of arrival.

The owner, agent, Master, operator, or person in charge of a vessel must submit notices of arrival consistent with the requirements in this subpart.

[80 FR 5331, Jan. 30, 2015]

§ 160.206 Information required in an NOA.

- (a) **Information required.** With the exceptions noted in paragraph (b) of this section, each NOA must contain all of the information items specified in Table 160.206. Vessel owners and operators should protect any personal information they gather in preparing notices for transmittal to the National Vessel Movement Center (NVMC) to prevent unauthorized disclosure of that information.

TABLE 160.206—NOA INFORMATION ITEMS

Required information	Vessels neither carrying CDC nor controlling another vessel carrying CDC	Vessels carrying CDC or controlling another vessel carrying CDC
(1) <i>Vessel Information:</i>		
(i) Name;	X	X
(ii) Name of the registered owner;	X	X
(iii) Country of registry;	X	X
(iv) Call sign;	X	X
(v) International Maritime Organization (IMO) international number or, if vessel does not have an assigned IMO international number, substitute with official number;	X	X
(vi) Name of the operator;	X	X
(vii) Name of charterer;	X	X
(viii) Name of classification society or recognized organization;	X	X
(ix) Maritime Mobile Service Identity (MMSI) number, if applicable;	X	X
(x) Whether the vessel is 300 gross tons or less (yes or no); and	X	X
(xi) USCG Vessel Response Plan Control Number, if applicable.	X	X
(2) <i>Voyage Information:</i>		
(i) Names of last five foreign ports or places visited;	X	X
(ii) Dates of arrival and departure for last five foreign ports or places visited;	X	X
(iii) For the port or place of the United States to be visited, list the name of the receiving facility, the port or place, the city, and the state;	X	X

Note to Table 160.206. For items with an asterisk (*), see paragraph (b) of this section. Submitting a response for item 6 indicating that navigation equipment is not operating properly does not serve as notice to the District Commander, Captain of the Port, or Vessel Traffic Center, under 33 CFR 164.53.

Required information	Vessels neither carrying CDC nor controlling another vessel carrying CDC	Vessels carrying CDC or controlling another vessel carrying CDC
(iv) For the port or place of the United States to be visited, the estimated date and time of arrival;	X	X
(v) For the port or place in the United States to be visited, the estimated date and time of departure;	X	X
(vi) The location (port or place and country) or position (latitude and longitude or waterway and mile marker) of the vessel at the time of reporting;	X	X
(vii) The name and telephone number of a 24-hour point of contact;	X	X
(viii) Whether the vessel's voyage time is less than 24 hours (yes or no);	X	X
(ix) Last port or place of departure; and	X	X
(x) Dates of arrival and departure for last port or place of departure.	X	X
(3) <i>Cargo Information:</i>		
(i) A general description of cargo, other than CDC, on board the vessel (e.g., grain, container, oil, etc.);	X	X
(ii) Name of each CDC carried, including cargo UN number, if applicable; and		X
(iii) Amount of each CDC carried.		X
(4) <i>Information for each Crewmember On Board:</i>		
(i) Full name;	X	X
(ii) Date of birth;	X	X
(iii) Nationality;	X	X
(iv) Passport * or mariner's document number (type of identification and number);	X	X
(v) Position or duties on the vessel; and	X	X
(vi) Where the crewmember embarked (list port or place and country).	X	X
(5) <i>Information for each Person On Board in Addition to Crew:</i>		
(i) Full name;	X	X
(ii) Date of birth;	X	X

Note to Table 160.206. For items with an asterisk (*), see paragraph (b) of this section. Submitting a response for item 6 indicating that navigation equipment is not operating properly does not serve as notice to the District Commander, Captain of the Port, or Vessel Traffic Center, under 33 CFR 164.53.

Required information	Vessels neither carrying CDC nor controlling another vessel carrying CDC	Vessels carrying CDC or controlling another vessel carrying CDC
(iii) Nationality;	X	X
(iv) Passport number; * and	X	X
(v) Where the person embarked (list port or place and country).	X	X
(6) <i>Operational condition of equipment required by 33 CFR part 164 of this chapter (see note to table):</i>	X	X
(7) <i>International Safety Management (ISM) Code Notice:</i>		
(i) The date of expiration for the company's Document of Compliance certificate that covers the vessel;	X	X
(ii) The date of expiration for the vessel's Safety Management Certificate; and	X	X
(iii) The name of the Flag Administration, or the recognized organization(s) representing the vessel Flag Administration, that issued those certificates.	X	X
(8) <i>International Ship and Port Facility Security Code (ISPS) Notice:</i>		
(i) The date of issuance for the vessel's International Ship Security Certificate (ISSC), if any;	X	X
(ii) Whether the ISSC, if any, is an initial Interim ISSC, subsequent and consecutive Interim ISSC, or final ISSC;	X	X
(iii) Declaration that the approved ship security plan, if any, is being implemented;	X	X
(iv) If a subsequent and consecutive Interim ISSC, the reasons therefore;	X	X
(v) The name and 24-hour contact information for the Company Security Officer; and	X	X
(vi) The name of the Flag Administration or the recognized security organization(s) representing the vessel Flag Administration that issued the ISSC.	X	X

Note to Table 160.206. For items with an asterisk (*), see paragraph (b) of this section. Submitting a response for item 6 indicating that navigation equipment is not operating properly does not serve as notice to the District Commander, Captain of the Port, or Vessel Traffic Center, under 33 CFR 164.53.

- (b) **Exceptions.** If a crewmember or person on board other than a crewmember is not required to carry a passport for travel, then passport information required in Table 160.206 by items (4)(iv) and (5) (iv) need not be provided for that person.

[80 FR 5331, Jan. 30, 2015]

§ 160.208 Updates to a submitted NOA.

- (a) Unless otherwise specified in this section, whenever events cause NOA information submitted for a vessel to become inaccurate, or the submitter to realize that data submitted was inaccurate, the owner, agent, Master, operator, or person in charge of that vessel must submit an update within the times required in § 160.212.
- (b) Changes in the following information need not be reported:
 - (1) Changes in arrival or departure times that are less than six (6) hours;
 - (2) Changes in vessel location or position of the vessel at the time of reporting (entry (2)(vi) to Table 160.206); and
 - (3) Changes to crewmembers' position or duties on the vessel (entry (4)(vii) to Table 160.206).
- (c) When reporting updates, revise and resubmit the NOA.

[USCG-2002-11865, 68 FR 9543, Feb. 28, 2003, as amended by USCG-2005-21869, 80 FR 5333, Jan. 30, 2015]

§ 160.210 Methods for submitting an NOA.

- (a) **National Vessel Movement Center (NVMC).** Except as otherwise provided in this paragraph or paragraph (b) of this section, vessels must submit NOA information required by § 160.206 to the NVMC using methods currently specified at www.nvmc.uscg.gov, which includes submission through the NVMC electronic Notice of Arrival and Departure (eNOAD) World Wide Web site, and XML, which includes the Excel Workbook format. These data may also be submitted using other methods that may be added as future options on www.nvmc.uscg.gov. XML spreadsheets may be submitted via email to enoad@nvmc.uscg.gov. If a vessel operator must submit an NOA or an update, for a vessel in an area without internet access or when experiencing technical difficulties with an onboard computer, and he or she has no shore-side support available, the vessel operator may fax or phone the submission to the NVMC. Fax at 1-800-547-8724 or 304-264-2684. Workbook available at www.nvmc.uscg.gov; or, telephone at 1-800-708-9823 or 304-264-2502.
- (b) **Saint Lawrence Seaway.** Those vessels transiting the Saint Lawrence Seaway inbound, bound for a port or place in the United States, may meet the submission requirements of paragraph (a) of this section by submitting the required information to the Saint Lawrence Seaway Development Corporation and the Saint Lawrence Seaway Management Corporation of Canada using methods specified at www.nvmc.uscg.gov.

[USCG-2005-21869, 80 FR 5333, Jan. 30, 2015]

§ 160.212 When to submit an NOA.

- (a) **Submission of an NOA.**
 - (1) Except as set out in paragraphs (a)(2) and (a)(3) of this section, all vessels must submit NOAs within the times required in paragraph (a)(4) of this section.

- (2) Towing vessels, when in control of a vessel carrying CDC and operating solely between ports or places of the contiguous 48 states, Alaska, and the District of Columbia, must submit an NOA before departure but at least 12 hours before arriving at the port or place of destination.
- (3) U.S. vessels 300 gross tons or less, arriving from a foreign port or place, and whose voyage time is less than 24 hours must submit an NOA at least 60 minutes before departure from the foreign port or place. Also, Canadian vessels 300 gross tons or less, arriving directly from Canada, via boundary waters, to a United States port or place on the Great Lakes, whose voyage time is less than 24 hours must submit an NOA at least 60 minutes before departure from the Canadian port or place.
- (4) Times for submitting NOAs are as follows:

If your voyage time is—	Then you must submit an NOA—
(i) 96 hours or more; or	At least 96 hours before arriving at the port or place of destination; or
(ii) Less than 96 hours	Before departure but at least 24 hours before arriving at the port or place of destination.

(b) *Submission of updates to an NOA.*

- (1) Except as set out in paragraphs (b)(2) and (b)(3) of this section, vessels must submit updates in NOA information within the times required in paragraph (b)(4) of this section.
- (2) Towing vessels, when in control of a vessel carrying CDC and operating solely between ports or places in the contiguous 48 states, Alaska, and the District of Columbia, must submit updates to an NOA as soon as practicable but at least 6 hours before entering the port or place of destination.
- (3) U.S. vessels 300 gross tons or less, arriving from a foreign port or place, whose voyage time is—
 - (i) Less than 24 hours but greater than 6 hours, must submit updates to an NOA as soon as practicable, but at least 6 hours before entering the port or place of destination.
 - (ii) Less than or equal to 6 hours, must submit updates to an NOA as soon as practicable, but at least 60 minutes before departure from the foreign port or place.
- (4) Times for submitting updates to NOAs are as follows:

If your remaining voyage time is—	Then you must submit updates to an NOA—
(i) 96 hours or more;	As soon as practicable, but at least 24 hours before arriving at the port or place of destination;
(ii) Less than 96 hours but not less than 24 hours; or	As soon as practicable, but at least 24 hours before arriving at the port or place of destination; or

If your remaining voyage time is—	Then you must submit updates to an NOA—
(iii) Less than 24 hours	As soon as practicable, but at least 12 hours before arriving at the port or place of destination.

[USCG-2005-21869, 80 FR 5333, Jan. 30, 2015]

§ 160.214 Waivers.

The Captain of the Port may waive, within that Captain of the Port's designated zone, any of the requirements of this subpart for any vessel or class of vessels upon finding that the vessel, route, area of operations, conditions of the voyage, or other circumstances are such that application of this subpart is unnecessary or impractical for purposes of safety, environmental protection, or national security.

§ 160.215 Force majeure.

When a vessel is bound for a port or place of the United States under force majeure, it must comply with the requirements in this section, but not other sections of this subpart. The vessel must report the following information to the nearest Captain of the Port as soon as practicable:

- (a) The vessel Master's intentions;
- (b) Any hazardous conditions as defined in § 160.202; and
- (c) If the vessel is carrying certain dangerous cargo or controlling a vessel carrying certain dangerous cargo, the amount and name of each CDC carried, including cargo UN number if applicable.

[USCG-2000-7080, 81 FR 59137, Aug. 29, 2016]

§ 160.216 Notice of hazardous conditions.

- (a) Whenever there is a hazardous condition either on board a vessel or caused by a vessel or its operation, the owner, agent, master, operator, or person in charge must immediately notify the nearest Coast Guard Sector Office or Group Office, and in addition submit any report required by 46 CFR 4.05-10.
- (b) When the hazardous condition involves cargo loss or jettisoning as described in 33 CFR 97.115, the notification required by paragraph (a) of this section must include—
 - (1) What was lost, including a description of cargo, substances involved, and types of packages;
 - (2) How many were lost, including the number of packages and quantity of substances they represent;
 - (3) When the incident occurred, including the time of the incident or period of time over which the incident occurred;
 - (4) Where the incident occurred, including the exact or estimated location of the incident, the route the ship was taking, and the weather (wind and sea) conditions at the time or approximate time of the incident; and

- (5) How the incident occurred, including the circumstances of the incident, the type of securing equipment that was used, and any other material failures that may have contributed to the incident.

[USCG-2000-7080, 81 FR 28017, May 9, 2016. Redesignated by USCG-2000-7080, 81 FR 59136, Aug. 29, 2016]

Subpart D—Crewmember Identification

Source: USCG-2007-28648, 74 FR 19140, Apr. 28, 2009, unless otherwise noted.

§ 160.300 Applicability.

- (a) This subpart applies to crewmembers on the following vessels in the navigable waters of the United States en route to a U.S. port or place of destination or at a U.S. port or place:
 - (1) A foreign vessel engaged in commercial service, and
 - (2) A U.S. vessel engaged in commercial service and coming from a foreign port or place of departure.
- (b) This subpart also applies to the operators of the vessels listed in paragraph (a) of this section.

§ 160.305 Exceptions.

Requirements in this subpart do not apply to crewmembers and operators on a vessel bound for a U.S. port or place of destination under *force majeure*.

§ 160.310 Definitions.

As used in this subpart, and only for purposes of this subpart—

Acceptable identification means a:

- (1) Passport;
- (2) U.S. Permanent Resident Card;
- (3) U.S. merchant mariner document;
- (4) U.S. merchant mariner credential;
- (5) Transportation Worker Identification Credential (TWIC) issued by the Transportation Security Administration under 49 CFR part 1572; or
- (6) Seafarer's Identification Document (SID) issued by or under the authority of the government of a country that has ratified the International Labour Organization Seafarers' Identity Documents Convention (Revised), 2003 (ILO 185), meeting all the requirements of ILO 185.

Commercial service means any type of trade or business involving the transportation of goods or individuals, except service performed by a combatant vessel.

Crewmember means all persons carried onboard a vessel to provide: navigation services; maintenance of the vessel, its machinery, or systems; arrangements essential for propulsion or safe navigation; or services for other persons onboard.

Foreign vessel means a vessel of foreign registry or operated under the authority of a country except the United States.

Navigable waters of the United States means the same as this term is defined in 33 CFR 2.36(a). This includes a 12-nautical-mile wide U.S. territorial sea as measured from the baseline, U.S. internal waters subject to tidal influence, and certain U.S. internal waters not subject to tidal influence.

Operator means any person including, but not limited to, an owner, a charterer, or another contractor who conducts, or is responsible for, the operation of a vessel.

Passport means any travel document issued by competent authority showing the bearer's origin, identity, and nationality if any, which is valid for the admission of the bearer into a foreign country.

Port or place of departure means any port or place in which a vessel is anchored or moored.

Port or place of destination means any port or place in which a vessel is bound to anchor or moor.

§ 160.315 Crewmember identification requirement.

- (a) A crewmember subject to this subpart must carry and present on demand an acceptable identification. An operator subject to this subpart must ensure that every crewmember on the vessel has an acceptable identification in his or her possession when the vessel is in the navigable waters of the United States. For purposes of this section, a crewmember may secure his or her acceptable identification with the vessel's master, so long as the identification can be presented on demand.
- (b) Compliance with the requirements in this section does not relieve vessel crewmembers and operators of any requirements under the Immigration and Nationality Act (INA) or INA implementing regulations. Likewise, compliance with INA requirements does not relieve vessel crewmembers and operators of the requirements in this section.

§ 160.320 Sanctions and vessel control.

Failure to comply with this subpart will subject the crewmember and operator to a civil penalty under 46 U.S.C. 70119 and the vessel to control under 46 U.S.C. 70002.

[USCG-2007-28648, 74 FR 19140, Apr. 28, 2009, as amended by USCG-2020-0304, 85 FR 58280, Sept. 18, 2020]